ASTELLAS PHARMA INC. et al v. ALEMBIC PHARMACEUTICALS LIMITED et al

Plaintiff:	ASTELLAS PHARMA INC., ASTELLAS US LLC, ASTELLAS PHARMA US, INC., MEDIVATION LLC and MEDIVATION PROSTATE THERAPEUTICS LLC
Defendant:	ALEMBIC PHARMACEUTICALS LIMITED and ALEMBIC PHARMACEUTICALS, INC.
Case Number:	3:2026cv12995
Filed:	October 5, 2026
Court:	U.S. District Court for the District of New Jersey
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
October 5, 2026	**Filing 2** Corporate Disclosure Statement by ASTELLAS PHARMA INC., ASTELLAS PHARMA US, INC., ASTELLAS US LLC, MEDIVATION LLC, MEDIVATION PROSTATE THERAPEUTICS LLC. (WALSH, LIZA)
October 5, 2026	**Filing 1** COMPLAINT against ALEMBIC PHARMACEUTICALS LIMITED, ALEMBIC PHARMACEUTICALS, INC. (Filing and Admin fee $ 405 receipt number ANJDC-18029248) , Related Case Selected, filed by MEDIVATION LLC, ASTELLAS US LLC, ASTELLAS PHARMA INC., MEDIVATION PROSTATE THERAPEUTICS LLC, ASTELLAS PHARMA US, INC.. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Exhibit C, #4 Civil Cover Sheet, #5 AO 120 Form)(WALSH, LIZA)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Astellas Pharma Inc. (Japan); Astellas US LLC (Delaware); Astellas Pharma US, Inc. (Delaware); Medivation LLC (Delaware); Medivation Prostate Therapeutics LLC (Delaware)
  - Defendant: Alembic Pharmaceuticals Limited (India); Alembic Pharmaceuticals, Inc. (Delaware)
  - Plaintiff's Counsel: Walsh Pizzi Oreilly Falanga LLP
- Case Identification: 3:26-cv-12995, D.N.J., 10/05/2026
- Venue Allegations: Venue is based on Defendant Alembic Inc. having a principal place of business in New Jersey and Defendant Alembic Ltd. being a foreign corporation subject to suit in any judicial district.
- Core Dispute: Plaintiff alleges that Defendant's Abbreviated New Drug Application (ANDA) to market generic versions of Xtandi® (enzalutamide) tablets infringes three U.S. patents covering formulations and methods of use for the drug.
- Technical Context: The technology relates to pharmaceutical formulations of enzalutamide, an androgen receptor signaling inhibitor used for treating prostate cancer, designed to improve the drug's solubility and bioavailability.
- Key Procedural History: This action was initiated under the Hatch-Waxman Act following a notice letter from Alembic, dated August 21, 2026, which included a Paragraph IV certification asserting that Plaintiffs' patents are invalid, unenforceable, and/or not infringed. The complaint was filed within the 45-day statutory period, triggering a potential 30-month stay of FDA approval for Alembic's ANDA.

Case Timeline

Date	Event
2012-09-11	'689 and '357 Patents - Earliest Priority Date
2015-08-12	'628 Patent - Earliest Priority Date
2016-09-28	Pfizer Inc. acquires Medivation, Inc.
2017-08-28	Medivation, Inc. converts to Medivation LLC
2020-08-04	FDA approves NDA for Xtandi® 40 mg and 80 mg tablets
2023-11-16	FDA approves expanded indication for Xtandi® tablets
2023-12-12	U.S. Patent No. 11,839,689 Issues
2024-12-10	U.S. Patent No. 12,161,628 Issues
2025-12-23	U.S. Patent No. 12,502,357 Issues
2026-08-21	Alembic's Notice Letter sent to Plaintiffs
2026-10-05	Complaint Filed

I. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 11,839,689 - “Formulations of Enzalutamide”

(Issued December 12, 2023; '689 Patent)

The Invention Explained

- Problem Addressed: The patent addresses the challenge of delivering enzalutamide, a therapeutic agent for prostate cancer, in a way that improves its solubility and absorption in the body '689 Patent, col. 2:20-25 Poor solubility can limit a drug's oral bioavailability.

- The Patented Solution: The invention is a pharmaceutical composition formulated as a "solid dispersion" that combines enzalutamide in an amorphous (non-crystalline) state with a "concentration-enhancing polymer," specifically hydroxypropyl methylcellulose acetate succinate (HPMCAS) '689 Patent, abstract '689 Patent, col. 3:41-44 The amorphous form of a drug generally dissolves more quickly and to a greater extent than its crystalline form, and the polymer helps maintain this state and enhances drug concentration in the body '689 Patent, col. 2:45-54
- Technical Importance: This formulation strategy aims to improve the oral bioavailability of enzalutamide, which can potentially enable the entire daily therapeutic dose to be administered in a single dosage unit '689 Patent, col. 2:39-44

Key Claims at a Glance

- The complaint asserts infringement of at least Claim 1 '689 Patent, claim 1 Compl. ¶50
- Independent Claim 1 requires:
  - A pharmaceutical composition comprising a solid dispersion
  - consisting essentially of amorphous enzalutamide
  - and hydroxypropyl methylcellulose acetate succinate ("HPMCAS").
- The complaint notes that certain dependent claims further specify that the formulation is a tablet Compl. ¶50

U.S. Patent No. 12,161,628 - "Combination Therapy"

(Issued December 10, 2024; '628 Patent)

The Invention Explained

- Problem Addressed: The patent addresses a drug-drug interaction issue where co-administration of enzalutamide with a strong CYP3A4 inducer, such as rifampin, can significantly decrease the plasma concentration of enzalutamide and its active metabolite, potentially reducing its therapeutic effect '628 Patent, col. 2:5-9
- The Patented Solution: The patent discloses a method to counteract this effect by increasing the daily dose of enzalutamide to 240 mg when it is co-administered with a strong CYP3A4 inducer like rifampin '628 Patent, abstract '628 Patent, col. 2:10-14 This dosage adjustment is intended to maintain a therapeutically effective concentration of enzalutamide.
- Technical Importance: This method provides a specific dosing regimen to maintain the efficacy of enzalutamide for patients who require concurrent treatment with drugs that are strong CYP3A4 inducers.

Key Claims at a Glance

- The complaint asserts infringement of at least Claim 1 '628 Patent, claim 1 Compl. ¶65
- Independent Claim 1 is a method claim requiring:
    - A method of treating prostate cancer in a patient to whom rifampin is administered,
    - comprising co-administering to the patient a daily dose of 240 mg of enzalutamide.

U.S. Patent No. 12,502,357 - "Formulations of Enzalutamide"

(Issued December 23, 2025; '357 Patent)

- Technology Synopsis: This patent claims a method of treating prostate cancer by administering a specific formulation of enzalutamide '357 Patent, abstract The technical problem is the effective delivery of enzalutamide, and the solution is a method of treatment using a tablet that comprises a solid dispersion of amorphous enzalutamide and HPMCAS, which is the same core formulation technology described in the '689 Patent '357 Patent, claim 1
- Asserted Claims: The complaint asserts infringement of at least Claim 1 Compl. ¶80
- Accused Features: The complaint alleges that Defendant's generic product will be a tablet comprising the claimed solid dispersion and that its product label will instruct for its use in treating prostate cancer Compl. ¶¶82-84 Compl. ¶87

III. The Accused Instrumentality

Product Identification

- The accused instrumentality is Alembic's proposed generic enzalutamide tablets, in 40 mg and 80 mg strengths, which are the subject of ANDA No. 221846 Compl. ¶38

Functionality and Market Context

- The complaint alleges that Alembic seeks FDA approval to manufacture and sell its generic products for the same indications as the branded Xtandi® tablets, including the treatment of various forms of prostate cancer Compl. ¶40 The complaint provides a 2D chemical structure diagram of the active pharmaceutical ingredient, enzalutamide Compl. ¶25 The infringement allegations are based on the expected composition and the proposed instructions for use of Alembic's generic tablets, which Plaintiffs allege will copy the formulation and label of the brand-name product Compl. ¶53 Compl. ¶67 Compl. ¶90

IV. Analysis of Infringement Allegations

’689 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
a pharmaceutical composition comprising a solid dispersion	The complaint alleges on information and belief that Alembic's Generic Products will contain a pharmaceutical composition comprising a solid dispersion.	¶55	col. 3:41-42
consisting essentially of amorphous enzalutamide	The complaint alleges the solid dispersion will consist essentially of amorphous enzalutamide or an equivalent thereof.	¶55	col. 3:42-43
and hydroxypropyl methylcellulose acetate succinate (“HPMCAS”)	The complaint alleges the solid dispersion will consist essentially of HPMCAS or an equivalent thereof.	¶55	col. 3:43-44

’628 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation

A method of treating prostate cancer in a patient to whom rifampin is administered,	The complaint alleges that the label for Alembic's generic product will direct its use for treating prostate cancer in patients who may also be receiving rifampin.	¶68	col. 2:10-12
comprising co-administering to the patient a daily dose of 240 mg of enzalutamide.	The complaint alleges the label will direct the co-administration of the generic product at a dose of 240 mg orally once daily in patients who are receiving rifampin.	¶68	col. 2:12-14

- Identified Points of Contention:
  - Scope Questions ('689 Patent): The infringement analysis for the '689 Patent may focus on the claim term "consisting essentially of." This transitional phrase allows for the presence of unlisted ingredients that do not materially affect the "basic and novel properties" of the invention. The complaint's allegation that the product will contain the claimed components "or an equivalent thereof" Compl. ¶55 suggests a potential dispute over whether any additional excipients in Alembic's formulation materially alter the properties of the claimed solid dispersion, such as its stability or dissolution profile.
  - Evidentiary Questions '628 Patent: For the '628 method patent, infringement is alleged via inducement. A central question will be evidentiary: does the product label proposed in Alembic's ANDA actually instruct or encourage healthcare providers to perform the specific steps of the claimed method, namely, co-administering a 240 mg daily dose of enzalutamide to a patient to whom rifampin is administered? The complaint's allegations are based on "information and belief" Compl. ¶¶66-69, and the court's analysis will depend on the actual language of the proposed label.

V. Key Claim Terms for Construction

’689 Patent

- The Term: "consisting essentially of"
- Context and Importance: This term is a standard transitional phrase in patent claiming that is narrower than "comprising" but broader than "consisting of." Its construction is critical because it defines how many and what kind of additional, unlisted ingredients are permissible in the accused product without taking it outside the scope of the claim. Practitioners may focus on this term because the infringement dispute will likely involve comparing the full list of excipients in Alembic's generic tablet to the two ingredients recited in claim 1 of the ’689 Patent.
- Intrinsic Evidence for Interpretation:
  - Evidence for a Broader Interpretation: A party arguing for a broader scope (i.e., allowing more unlisted ingredients) might contend that the "basic and novel properties" are narrowly limited to achieving supersaturation of enzalutamide through an amorphous dispersion. The patent's broad disclosure of other conventional excipients that may be added to the final dosage form could be cited to support this view ’689 Patent, col. 19:1-20:51
  - Evidence for a Narrower Interpretation: A party arguing for a narrower scope might assert that the "basic and novel properties" include specific stability characteristics, dissolution profiles, and particle morphology, as detailed extensively in the patent's examples and figures ’689 Patent, col. 31-34 ’689 Patent, FIG. 2A-2H They could argue that certain unlisted excipients in the accused product materially affect these specific, disclosed properties.

’628 Patent

- The Term: "a patient to whom rifampin is administered"
- Context and Importance: The construction of this phrase defines the patient population for the claimed method. Practitioners may focus on this term because it could determine the temporal relationship required between the administration of rifampin and enzalutamide.
- Intrinsic Evidence for Interpretation:
  - Evidence for a Broader Interpretation: The plain language "is administered" suggests a concurrent or overlapping treatment period, not necessarily that the rifampin treatment must have started before the enzalutamide is prescribed. The patent specification's general discussion of co-administration where pharmacological effects overlap would support an interpretation covering patients starting both drugs around the same time ’628 Patent, col. 2:15-20
  - Evidence for a Narrower Interpretation: A party could argue for a narrower reading where the patient must be an established rifampin user before the claimed method of enzalutamide administration begins. However, the

specification's description of a clinical trial design where enzalutamide is administered "after multiple oral doses of rifampin" '628 Patent, col. 2:5-7 might be used to argue the claim is limited to patients already on a stable course of rifampin.

VI. Other Allegations

- Indirect Infringement: The complaint alleges active inducement of infringement of the '628 and '357 method patents under 35 U.S.C. § 271(b) Compl. ¶66 Compl. ¶85 The allegations are based on the assertion that the label for Alembic's generic product will instruct, promote, and encourage healthcare providers and patients to use the product in a manner that practices the claimed methods Compl. ¶67 Compl. ¶86 The complaint also alleges contributory infringement of the '357 patent under 35 U.S.C. § 271(c), stating that the accused product is especially made for an infringing use and is not a staple article of commerce suitable for substantial non-infringing use Compl. ¶85 Compl. ¶93
- Willful Infringement: The complaint alleges that Alembic was aware of the patents-in-suit, as demonstrated by their listing in the FDA's Orange Book and their citation in Alembic's notice letter Compl. ¶57 Compl. ¶63 Compl. ¶78 The complaint further alleges that Alembic's positions on non-infringement and invalidity lack an objective good faith basis, which could support a finding of willful infringement and a declaration that the case is "exceptional" under 35 U.S.C. § 285 Compl. ¶59 Compl. ¶74 Compl. ¶95

VII. Analyst's Conclusion: Key Questions for the Case

- A primary issue for the composition-focused '689 and '357 patents will be one of definitional scope: will the transitional phrase "consisting essentially of" be construed to permit the specific combination of additional excipients present in Defendant's generic tablet, or will those excipients be found to materially alter the basic and novel properties of the claimed solid dispersion, thereby avoiding literal infringement?
- A central evidentiary question for the method-focused '628 and '357 patents will be one of inducement: does the language of the proposed product label in Defendant's ANDA provide sufficient evidence that Defendant will actively encourage or instruct medical professionals and patients to perform the patented methods of administration, or will the instructions be deemed too general to meet the legal standard for inducing infringement?

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY

ASTELLAS PHARMA INC.; ASTELLAS US LLC; ASTELLAS PHARMA US, INC.; MEDIVATION LLC; MEDIVATION PROSTATE THERAPEUTICS LLC, Plaintiffs, v. ALEMBIC PHARMACEUTICALS LIMITED, ALEMBIC PHARMACEUTICALS, INC., Defendants.	Civil Action No. _____

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiffs Astellas Pharma Inc. ("API"), Astellas US LLC ("AUS"), and Astellas Pharma US, Inc. ("APUS") (collectively, "Astellas"), and Medivation LLC and Medivation Prostate Therapeutics LLC ("MPT") (collectively, "Medivation") (all collectively, "Plaintiffs"), for their Complaint against Defendants Alembic Pharmaceuticals Limited ("Alembic Ltd.") and Alembic Pharmaceuticals, Inc. ("Alembic Inc.") (collectively, "Alembic"), hereby allege as follows:

THE PARTIES

1. Plaintiff API is a corporation organized and existing under the laws of Japan having its principal place of business at 2-5-1, Nihonbashi-Honcho, Chuo-Ku, Tokyo 103-8411, Japan.
2. Plaintiff AUS is a limited liability company organized and existing under the laws of the state of Delaware having its principal place of business at 2375 Waterview Drive, Northbrook, Illinois 60062, United States.
3. Plaintiff APUS is a corporation organized and existing under the laws of the state of Delaware having its principal place of business at 2375 Waterview Drive, Northbrook, Illinois 60062, United States.
4. Plaintiff Medivation LLC is a limited liability company organized and existing under the laws of the state of Delaware having its principal place of business at 66 Hudson Boulevard East, New York, New York 10001-2192, United States.
5. Plaintiff MPT is a limited liability company organized and existing under the laws of the state of Delaware having its principal place of business at 66 Hudson Boulevard East, New York, New York 10001-2192, United States.
6. On information and belief, Defendant Alembic Ltd. is a corporation organized and existing under the laws of India having a principal place of business at Alembic Road, Vadodara 390003, Gujarat, India.
7. On information and belief, Alembic Ltd., by itself and/or through its affiliates and agents, including Alembic Inc., is in the business of among other things, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the state of New Jersey and throughout the United States.
8. On information and belief, Defendant Alembic Inc. is a corporation organized and existing under the laws of the state of Delaware having a principal place of business at 550 Hills Drive, Suite 104B Bedminster, New Jersey 07921, United States.
9. On information and belief, Alembic Inc., by itself and/or through its affiliates and agents, including Alembic Ltd., is in the business of among other things, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the state of New Jersey and throughout the United States.
10. On information and belief, Alembic Inc. is a wholly-owned subsidiary of Alembic Ltd.
11. On information and belief, Alembic Ltd. and Alembic Inc. are agents of each other and/or operate in concert with respect to the development,

regulatory approval, marketing, sale, and/or distribution of generic products. On information and belief, the acts of Alembic Ltd. and Alembic Inc. complained of herein were done with the cooperation, participation, and assistance of, and at least in part, for the benefit of, each other.

12. On information and belief, Defendants Alembic Ltd. and Alembic Inc. have cooperated and assisted in the preparation and filing of Alembic's Abbreviated New Drug Application ("ANDA") No. 221846 and will be involved in the manufacture, importation, marketing, and sale of the drug product that is the subject of ANDA No. 221846 if it is approved.

NATURE OF THE ACTION

13. This is a civil action for the infringement of United States Patent Nos. 11,839,689 ("the '689 patent"), 12,161,628 ("the '628 patent"), and 12,502,357 ("the '357 patent") (collectively, the "Xtandi® patents") under the Patent Laws of the United States, 35 U.S.C. § 100 et seq., arising from Alembic's filing of ANDA No. 221846 with the United States Food and Drug Administration ("FDA") seeking approval to market generic versions of the pharmaceutical products Xtandi® tablets, 40 and 80 mg, before the expiration of Plaintiffs' patents covering Xtandi® tablets and their use.

JURISDICTION AND VENUE

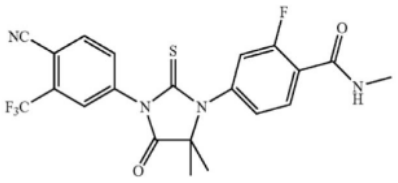
14. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331 and 1338.
15. This Court has personal jurisdiction over Alembic by virtue of the fact that, inter alia, Alembic has committed the tortious act of patent infringement pursuant to 35 U.S.C. § 271(e)(2)(A) that has led to foreseeable harm and injury to Plaintiffs in the state of New Jersey and throughout the United States.
16. This Court has personal jurisdiction over Alembic by virtue of the fact that Alembic is at home in New Jersey as reflected by the fact that, on information and belief, Alembic regularly does or solicits business in New Jersey, engages in other persistent courses of conduct in New Jersey, and/or derives substantial revenue from services or things used or consumed in New Jersey, including by selling its pharmaceutical products in New Jersey and, therefore, Alembic can reasonably expect to be subject to jurisdiction in the New Jersey courts. Among other things, on information and belief, Alembic conducts marketing and sales activities in the state of New Jersey,

including, but not limited to, distribution, marketing, and sales of pharmaceutical products to New Jersey residents that are continuous and systematic. On information and belief, if Alembic's ANDA No. 221846 is approved, Alembic will market and sell its generic versions of Xtandi® tablets in New Jersey.

17. This Court has personal jurisdiction over Alembic by virtue of the fact that Alembic has previously submitted to the jurisdiction of this Court and availed itself of this Court by asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to e.g. Adverio Pharma GmbH et al. v. Alembic Pharms. Ltd. et al. 2:23-cv-01285 (D.N.J.); Adverio Pharma GmbH et al. v. Alembic Pharms. Ltd. et al. No. 2:22-cv-06104 (D.N.J.); Actelion Pharms. Ltd. et al. v. MSN Pharms. Inc. et al., No. 1:20-cv-03859 (D.N.J.). On information and belief, Alembic Ltd. previously submitted to the jurisdiction of this Court and availed itself of the legal protections of the state of New Jersey by having filed suit in this jurisdiction. See, e.g., Alembic Pharms. Ltd. v. Novartis Pharms. Corp. et al., No. 2:19-cv-20890 (D.N.J.).
18. Alternatively, assuming that the above facts do not establish personal jurisdiction over Alembic Ltd., this Court may exercise jurisdiction over Alembic Ltd. pursuant to Federal Rule of Civil Procedure 4(k)(2) because: (a) Plaintiffs' claims arise under federal law; (b) Alembic Ltd. is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Alembic Ltd. has sufficient contacts with the United States as a whole, including, but not limited to manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over Alembic Ltd. satisfies due process.
19. This Court also has personal jurisdiction over Alembic Inc. by virtue of the fact that, on information and belief, Alembic Inc. has a principal place of business in New Jersey. Alembic Inc. has an active business entity status registered with the New Jersey Department of Treasury under business entity identification number 0101031141 and maintains a principal place of business at 550 Hills Drive, Suite 104B Bedminster, New Jersey 07921. On information and belief, Alembic Inc. has registered with the New Jersey Department of Health as a drug distributor and manufacturer operating in New Jersey under registration number 5004785.
20. Venue is proper in this judicial district pursuant to 28 U.S.C. §§ 1391 and 1400(b).

21. Venue is proper in this judicial district as to Alembic Ltd. because, among other things, Alembic Ltd. is a foreign corporation not residing in any United States district and may be sued in any judicial district.
22. Venue is proper in this judicial district for Alembic Inc. because, among other things, on information and belief, Alembic Inc. has an active business entity status registered with the New Jersey Department of Treasury under business entity identification number 0101031141 and maintains a principal place of business at 550 Hills Drive, Suite 104B Bedminster, New Jersey 07921. On information and belief, Alembic Inc. has registered with the New Jersey Department of Health as a drug distributor and manufacturer operating in New Jersey under registration number 5004785. On information and belief, based on Alembic Inc.'s presence in and connections to New Jersey, discoverable information in Alembic Inc.'s possession, custody, or control regarding Alembic's ANDA No. 221846 will show that Alembic Inc. engaged in activities in New Jersey relevant to the preparation and/or submission of Alembic's ANDA No. 221846.
23. Venue is further proper in this judicial district as to Alembic because, among other things, Alembic has committed, or aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture Xtandi® for sale and use throughout the United States, including within the state of New Jersey.
24. APUS filed New Drug Application ("NDA") No. 213674 for Xtandi® (enzalutamide) tablets, 40 mg and 80 mg. The FDA approved NDA No. 213674 for Xtandi® 40 mg and 80 mg tablets on August 4, 2020, for the treatment of patients with castration-resistant prostate cancer and metastatic castration-sensitive prostate cancer. On November 16, 2023, the FDA approved an xpanded indication for the use of Xtandi® 40 mg and 80 mg tablets to treat patients with non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis. Xtandi® tablets are sold and co-promoted by APUS and Pfizer Inc. in the United States
25. Enzalutamide is a compound that can be referred to by any of several chemical names, including 4-{3-[4-cyano-3-(trifluoromethyl)phenyl]-5,5-dimethyl-4-oxo-2-sulfanylideneimidazolidin-1-yl}-2-fluoro-N-methylbenzamide,4-{3-(4-cyano-3-(trifluoromethyl)phenyl)-5,5-dimethyl-4-oxo-2-thioxoimidazolidin-1-yl}-2-fluoro-N-methylbenzamide,4-[3-[4-cyano-3-(trifluoromethyl)phenyl]-4-keto-5,5-dimethyl-2-thioxo-imidazolidin-1-yl]-2-fluoro-N-methyl-benzamide, and

4-[3-[4-cyano-3-(trifluoromethyl)phenyl]-5,5-dimethyl-4-oxo-2-sulfanylidene-1-imidazolidinyl]-2-fluoro-N-methylbenzamide, and which has the following chemical structure:



THE PATENTS-IN-SUIT

26. On December 12, 2023, the ’689 patent, entitled “Formulations of Enzalutamide,” was duly and legally issued to API and MPT. A true and correct copy of the ’689 patent is attached hereto as Exhibit A.
27. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the ’689 patent is listed in the FDA’s Approved Drug Products with Therapeutic Equivalence Evaluations (also known as the “Orange Book”) for Xtandi® 40 mg and 80 mg tablets.
28. On December 10, 2024, the ’628 patent, entitled “Combination Therapy,” was duly and legally issued to API and MPT. A true and correct copy of the ’628 patent is attached hereto as Exhibit B.
29. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the ’628 patent is listed in the Orange Book for Xtandi® 40 mg and 80 mg tablets.
30. On December 23, 2025, the ’357 patent, entitled “Formulations of Enzalutamide,” was duly and legally issued to API and MPT. A true and correct copy of the ’357 patent is attached hereto as Exhibit C.
31. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the ’357 patent is listed in the Orange Book for Xtandi® 40 mg and 80 mg tablets.
32. Pursuant to an agreement, as amended, entered into between API, AUS, Medivation, Inc., and Medivation Prostate Therapeutics, Inc., API was granted an exclusive license to the Xtandi® patents.
33. Pursuant to an agreement, as amended, entered into between API and AUS, AUS was granted a sublicense to the Xtandi® patents.
34. Pursuant to an agreement entered into between AUS and APUS, APUS was granted a sublicense to the Xtandi® patents.
35. On September 28, 2016, Pfizer Inc. acquired Medivation, Inc. and its wholly owned subsidiary Medivation Prostate Therapeutics, Inc.

36. On August 28, 2017, Medivation, Inc. filed a Certificate of Conversion with the Delaware Secretary of State, in which Medivation, Inc. converted from a corporation to a limited liability company and changed its name to Medivation LLC.
37. On August 28, 2017, Medivation Prostate Therapeutics, Inc. filed a Certificate of Conversion with the Delaware Secretary of State, in which Medivation Prostate Therapeutics, Inc. converted from a corporation to a limited liability company and changed its name to Medivation Prostate Therapeutics LLC.

CLAIMS FOR RELIEF – PATENT INFRINGEMENT

38. By a letter dated August 21, 2026 ("Alembic's Notice Letter"), Alembic advised APUS, API, and MPT that Alembic had submitted ANDA No. 221846 to the FDA seeking approval to manufacture, use, or sell enzalutamide 40 mg and 80 mg tablets ("Alembic's Generic Products") prior to the expiration of the '689, '628, and '357 patents.
39. On information and belief, Alembic submitted ANDA No. 221846 to the FDA under § 505(j) of the Federal Food, Drug, and Cosmetic Act ("FDCA"), seeking approval to engage in the commercial manufacture, use, and sale of Alembic's Generic Products as generic versions of Xtandi® 40 mg and 80 mg tablets.
40. On information and belief, ANDA No. 221846 seeks FDA approval of Alembic's Generic Products for the indications of treatment of castration-resistant prostate cancer, metastatic castration-sensitive prostate cancer, and non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis.
41. Alembic's Notice Letter also advised APUS, API, and MPT that Alembic's ANDA submission included a certification under 21 U.S.C. § 355(j)(2)(A)(vii)(IV) that, in Alembic's opinion, the claims of the '689, '628, and '357 patents are invalid, unenforceable, and/or not infringed.
42. Alembic's Notice Letter does not allege invalidity under 35 U.S.C. §§ 101, 102, 103, or 112, or unenforceability of any claim of the '689 and '357 patents.
43. By not identifying invalidity defenses under 35 U.S.C. §§ 101, 102, 103, or 112, or unenforceability defenses for the '689 and '357 patents in Alembic's Notice Letter, Alembic admits the claims of the '689 and '357 patents are valid under 35 U.S.C. §§ 101, 102, 103, and 112, and are enforceable.

44. Alembic's Notice Letter does not allege invalidity under 35 U.S.C. §§ 101, 102, or 112, or unenforceability of any claim of the '628 patent.
45. By not identifying invalidity defenses under 35 U.S.C. §§ 101, 102, or 112, or unenforceability defenses for the '628 patent in Alembic's Notice Letter, Alembic admits the claims of the '628 patent are valid under 35 U.S.C. §§ 101, 102, and 112, and are enforceable.
46. There is an actual, real, immediate, and justiciable controversy between Plaintiffs and Alembic regarding the infringement, validity, and enforceability of the Xtandi® patents.
47. Plaintiffs commenced this action within 45 days of receiving Alembic's Notice Letter pursuant to 21 U.S.C. § 355(j)(5)(B)(iii).

COUNT I
(Infringement of the '689 Patent)

48. Plaintiffs incorporate each of the preceding paragraphs 1 to 47 as if fully set forth herein.
49. By submitting ANDA No. 221846 to the FDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alembic's Generic Products throughout the United States, including New Jersey, prior to expiration of the '689 patent, Alembic committed an act of infringement of the '689 patent under 35 U.S.C. § 271(e)(2)(A).
50. The '689 patent claims, inter alia , pharmaceutical compositions of enzalutamide. Claim 1 recites "a pharmaceutical composition comprising a solid dispersion consisting essentially of amorphous enzalutamide and hydroxypropyl methylcellulose acetate succinate" ("HPMCAS"). Certain dependent claims specify that the formulation is a tablet.
51. The formulation of Xtandi® tablets, 40 and 80 mg, contains a pharmaceutical composition comprising a solid dispersion consisting essentially of amorphous enzalutamide and HPMCAS. The formulation of Xtandi® tablets, 40 and 80 mg, is covered by the '689 patent.
52. Alembic's Notice Letter does not dispute that Alembic's Generic Products are tablets, that those tablets contain a solid dispersion of amorphous enzalutamide, or that those tablets contain HPMCAS.
53. On information and belief, Alembic copied the claimed inventions of the '689 patent.
54. On information and belief, Alembic was not required to copy the claimed inventions of the '689 patent or the Xtandi® tablets formulation.

55. On information and belief, Alembic's Generic Products, if approved by the FDA, will contain a pharmaceutical composition comprising a solid dispersion consisting essentially of amorphous enzalutamide and HPMCAS or an equivalent thereof, which will constitute infringement of claims of the '689 patent.
56. On information and belief, Alembic's manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic's Generic Products prior to the expiration of the '689 patent, including any applicable exclusivities or extensions, will directly infringe the '689 patent under 35 U.S.C. § 271(a) either literally or under the doctrine of equivalents. Alembic will infringe one or more claims of the '689 patent.
57. On information and belief, Alembic was aware of the existence of the '689 patent and its listing in the Orange Book as demonstrated by Alembic's reference to the '689 patent in Alembic's Notice Letter.
58. On information and belief, Alembic knows or should know that its commercial manufacture, use, offer for sale, sale, and/or importation of Alembic's Generic Products prior to patent expiry will infringe one or more claims of the '689 patent.
59. On information and belief, Alembic's statement of the purported factual and legal bases for Alembic's opinions regarding non-infringement and invalidity of the '689 patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.
60. Plaintiffs will be substantially and irreparably harmed by the infringing activities described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

COUNT II
(Infringement of the '628 Patent)

61. Plaintiffs incorporate each of the preceding paragraphs 1 to 60 as if fully set forth herein.
62. By submitting ANDA No. 221846 to the FDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alembic's Generic Products throughout the United States, including New Jersey, prior to the expiration of the '628 patent, Alembic committed an act of infringement of the '628 patent under 35 U.S.C. § 271(e)(2)(A).

63. On information and belief, Alembic was aware of the existence of the ’628 patent and its listing in the Orange Book as demonstrated by Alembic’s reference to the ’628 patent in Alembic’s Notice Letter.
64. On information and belief, Alembic intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alembic’s Generic Products with prescribing information (“the label”) immediately and imminently upon final approval of Alembic’s ANDA No. 221846

65. The ’628 patent claims, inter alia, methods of treating prostate cancer in patients to whom rifampin is administered. Claim 1 recites a “method of treating prostate cancer in a patient to whom rifampin is administered, comprising co-administering to the patient a daily dose of 240 mg of enzalutamide.”

66. On information and belief, Alembic’s manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic’s Generic Products prior to the expiration of the ’628 patent, including any applicable exclusivities or extensions, will actively induce infringement of at least Claim 1 of the ’628 patent under 35 U.S.C. § 271(b). Alembic will take affirmative steps, including at least inserting language in the label for Alembic’s Generic Products that Alembic knows instructs, promotes, encourages, and will inevitably cause healthcare providers, caregivers, and/or patients to co-administer a 240 mg daily dose of enzalutamide in Alembic’s Generic Products to treat prostate cancer in a patient to whom rifampin is administered according to Claim 1 of the ’628 patent.
67. On information and belief, the label for Alembic’s Generic Products will have instructions for use that substantially copy the instructions for Xtandi® tablets, which disclose and encourage the practice of all the elements of Claim 1 of the ’628 patent.
68. Upon information and belief, the label for Alembic’s Generic Products will direct the use of Alembic’s Generic Products for the following indications: treatment of patients with castration-resistant prostate cancer, treatment of patients with metastatic castration-sensitive prostate cancer, and treatment of patients with non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis. On information and belief, the label for Alembic’s Generic Products will identify rifampin as a strong CYP3A4 inducer that decreases plasma concentrations of enzalutamide and its active metabolite and direct the co-administration of

Alembic's Generic Products at a dose of 240 mg orally once daily in patients who are receiving rifampin.

69. On information and belief, Alembic's Generic Products, if approved by the FDA, will be prescribed and administered to human patients to treat castration-resistant prostate cancer, metastatic castration-sensitive prostate cancer, and/or non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis, who are also receiving rifampin, at a daily dose of 240 mg/day, which will constitute infringement of at least Claim 1 of the '628 patent. This will be an approved use of Alembic's Generic Products.
70. On information and belief, this directly infringing use will occur with Alembic's specific intent and active encouragement and will be a use that Alembic knows or should know will occur.
71. wOn information and belief, Alembic copied the claimed inventions of the '628 patent.
72. On information and belief, Alembic will actively induce, encourage, aid, and abet infringing prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs' rights under the '628 patent.
73. On information and belief, Alembic's acts will be performed with knowledge of the '628 patent and with specific intent and active encouragement of infringement prior to patent expiry.
74. On information and belief, Alembic's statement of the purported factual and legal bases for Alembic's opinions regarding non-infringement and invalidity of the '628 patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.
75. Plaintiffs will be substantially and irreparably harmed by the infringing activities described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

COUNT III
(Infringement of the '357 Patent)

76. Plaintiffs incorporate each of the preceding paragraphs 1 to 75 as if fully set forth herein.
77. By submitting ANDA No. 221846 to the FDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of Alembic's Generic Products throughout the United

States, including New Jersey, prior to expiration of the ’357 patent, Alembic committed an act of infringement of the ’357 patent under 35 U.S.C. § 271(e)(2)(A).

78. On information and belief, Alembic was aware of the existence of the ’357 patent and its listing in the Orange Book as demonstrated by Alembic’s reference to the ’357 patent in Alembic’s Notice Letter.

79. On information and belief, Alembic intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Alembic’s Generic Products with the label immediately and imminently upon final approval of Alembic’s ANDA No. 221846.

80. The ’357 patent claims a method of treating prostate cancer comprising administering a pharmaceutical composition of enzalutamide. Claim 1 recites a “method of treating prostate cancer comprising administering to a patient in need thereof a tablet comprising a solid dispersion comprising amorphous enzalutamide and hydroxypropyl methylcellulose acetate succinate.”

81. Xtandi® tablets, 40 and 80 mg, are tablets comprising a solid dispersion comprising amorphous enzalutamide and HPMCAS. Xtandi® tablets are indicated to treat castration-resistant prostate cancer, metastatic castration-sensitive prostate cancer, and non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis. The use of Xtandi® tablets, 40 and 80 mg, is covered by the ’357 patent.

82. Alembic’s Notice Letter does not dispute that Alembic’s Generic Products are tablets, that those tablets contain a solid dispersion of amorphous enzalutamide, that those tablets contain HPMCAS, or that those tablets will be used to treat prostate cancer.

83. On information and belief, Alembic’s Generic Products, if approved by the FDA, will be tablets comprising a solid dispersion comprising amorphous enzalutamide and HPMCAS or an equivalent thereof.

84. On information and belief, Alembic’s Generic Products, if approved by the FDA, will be prescribed and administered to treat castration-resistant prostate cancer, metastatic castration-sensitive prostate cancer, and non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis.

85. On information and belief, Alembic’s manufacture, use, sale, offer for sale, and/or importation into the United States of Alembic’s Generic Products prior to the expiration of the ’357 patent, including any applicable exclusivities or extensions, will actively induce infringement of the ’357 patent under 35 U.S.C. § 271(b) and will constitute contributory

infringement of the ’357 patent under 35 U.S.C. § 271(c). Alembic will take affirmative steps, including at least inserting language in the label for Alembic’s Generic Products that Alembic knows instructs, promotes, encourages, and will inevitably cause healthcare providers, caregivers, and/or patients to treat prostate cancer by administering a tablet comprising a solid dispersion comprising amorphous enzalutamide and HPMCAS or an equivalent thereof according to Claim 1 of the ’357 patent.

86. On information and belief, Alembic’s Generic Products will have instructions for use that substantially copy the instructions for Xtandi® tablets, which encourage the practice of all the elements of Claim 1 of the ’357 patent.

87. Upon information and belief, the label for Alembic’s Generic Products will direct the use of Alembic’s Generic Products for the following indications: treatment of patients with castration-resistant prostate cancer, treatment of patients with metastatic castration-sensitive prostate cancer, and treatment of patients with non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis.

88. On information and belief, Alembic’s Generic Products, if approved by the FDA, will be prescribed and administered to human patients to treat castration-resistant prostate cancer, metastatic castration-sensitive prostate cancer, and/or non-metastatic castration-sensitive prostate cancer with biochemical recurrence at high risk for metastasis, which will constitute infringement of Claim 1 of the ’357 patent. This will be an approved use of Alembic’s Generic Products.

89.. On information and belief, this directly infringing use will occur with Alembic’s specific intent and active encouragement and will be a use that Alembic knows or should know will occur.

90. On information and belief, Alembic copied the claimed invention of the ’357 patent.

91. On information and belief, Alembic was not required to copy the claimed invention of the ’357 patent or the Xtandi® tablets formulation.

92. On information and belief, Alembic will actively induce, encourage, aid, and abet infringing prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs’ rights under the ’357 patent.

93. On information and belief, Alembic knows or should know that Alembic’s Generic Products will be especially made or especially adapted for use in a manner that will constitute infringement of the ’357 patent and are not a

staple article or commodity of commerce suitable for substantial non-infringing use.

94. On information and belief, Alembic's acts will be performed with knowledge of the '357 patent and with specific intent and active encouragement of infringement prior to patent expiry.
95. On information and belief, Alembic's statement of the purported factual and legal bases for Alembic's opinions regarding non-infringement and invalidity of the '357 patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.
96. Plaintiffs will be substantially and irreparably harmed by the infringing activities described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request the following relief:

A. A judgment that Alembic has infringed one or more claims of United States Patent Nos. 11,839,689, 12,161,628, and 12,502,357 by submitting and maintaining ANDA No. 221846 seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of Alembic's Generic Products before the expiration of the patents under 35 U.S.C. § 271(e)(2)(A);

B. A judgment that Alembic's commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Alembic's Generic Products will infringe one or more claims of United States Patent Nos. 11,839,689, 12,161,628, and 12,502,357 under 35 U.S.C. §§ 271(a), (b) and/or (c);

C. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining Alembic, its officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Alembic's Generic Products prior to the expiration date of United States Patent Nos. 11,839,689, 12,161,628, and 12,502,357, inclusive of any extensions;

D. An order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 221846 under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the

expiration date of United States Patent Nos. 11,839,689, 12,161,628, and 12,502,357, inclusive of any extensions;

E. A declaration that this case is "exceptional" under 35 U.S.C. § 285 and an award of attorney fees;

F. An award of costs and expenses in this action; and

G. Such other and further relief as the Court may deem just and proper.

Dated: October 5, 2026

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